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## IMPARTIAL ANALYSIS BY COUNTY COUNSEL
## MEASURE S

This measure would adopt the Fresno County Transportation Improvement Act, a County of Fresno ordinance imposing a half-cent (0.5%) transactions and use tax (sales tax) for thirty years for specified transportation purposes (Measure). The tax would begin July 1, 2027, when the existing Measure C transportation tax expires, and would end thirty years later unless extended by the voters. The California Department of Tax and Fee Administration would administer and collect the tax.

Tax proceeds would be deposited into a County fund and appropriated to the Fresno Council of Governments (COG), a joint powers agency governed by the fifteen incorporated cities and the County. COG would annually allocate the proceeds as follows:

- 65% to the County and cities to repair, rebuild, and maintain local streets and roads, including sidewalks, bicycle and pedestrian facilities, and safe routes to school. Each jurisdiction would receive a $400,000 base allocation, with the balance distributed by population (80%) and maintained roadway miles (20%). No more than 5% of a jurisdiction's allocation may be spent on road expansion, and funds may not be used for streets in new growth areas.
- 25% to public transportation, with 10% to Clovis Transit, 70% to Fresno Area Express, and 20% to Fresno County Rural Transit Agency.
- 1% to the Fresno Yosemite International Airport.
- 4% to regional street, road, and highway projects.
- 4% first to zero-fare transit for people with disabilities, veterans, seniors, children, and students, then to competitive grants for clean energy and future transportation technology projects.
- 1% to COG for administration.

Funds must supplement, not supplant, other transportation funding. Each jurisdiction must extend the existing Regional Transportation Mitigation Fee agreement by June 30, 2028 or forfeit an equivalent amount from its allocation. COG would develop program requirements, complete studies, and conduct annual independent audits. An eleven-member Citizens Oversight Committee (Committee) appointed by the COG Policy Board would meet at least quarterly, review expenditures, and oversee annual audits.

The expenditure plan may be amended only through a public review process initiated by the COG Policy Board at least every ten years, conducted by the Committee, approved by COG, and adopted by the Board of Supervisors if the amendments further the purposes of the ordinance, with limited exceptions for declared emergencies and one-time state or federal funding opportunities. Any change to the percentage allocations among programs, and any other amendment, would require voter approval.

The Measure qualified for the ballot by an initiative petition signed by the requisite number of voters. It is being submitted to the voters at the November 3, 2026 election as required by Assembly Bill 1923 (Stats. 2026, ch. 108). Under current law, a citizen initiative

imposing a special tax is adopted by a majority vote (more than 50% of votes cast). A "yes" vote approves the tax; a "no" vote rejects it.

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